

STEPHEN H. BRANCH'S

ALLIGATOR.

VOLUME I

No. 18

AUGUST 21, 1858

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Title: Stephen H. Branch's Alligator, Vol. 1 no. 18, August 21, 1858

Editor: Stephen H. Branch

Release date: June 29, 2017 [eBook #55004]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/55004

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*** START OF THE PROJECT GUTENBERG EBOOK STEPHEN H.
BRANCH'S ALLIGATOR, VOL. 1 NO. 18, AUGUST 21, 1858 ***

Transcriber Notes

Obvious printer errors, typos and missing punctuation fixed. Archaic, inconsistent and unusual spelling representing spoken dialect retained.

A pointing hand in text within the Advertisements has been replicated using the “White right pointing index” Unicode character (U+261E). If the device font does not support this character, ☞, it may not display correctly.

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STEPHEN H. BRANCH'S
ALLIGATOR.

Volume I.—No. 18.

SATURDAY, AUGUST 21, 1858.

Price 2 Cents.

STEPHEN H. BRANCH'S ALLIGATOR.

OPINIONS OF THE PRESS.

We conclude, the public feel slightly interested in our libel case; therefore we shall take the liberty to lay before our readers a few extracts from the weekly press of our city, as we did in our last the opinions of the dailies.

[From the N. Y. Weekly Despatch.]

During the last three months Branch's *Alligator* has been the talk of the town. Through the columns of his little sheet, Branch has made charges of the most serious nature against prominent citizens and office holders. At first no notice was taken of these attacks, finally, however, these charges were so generally talked of that it became necessary for the parties assailed to notice them. Mayor Tiemann, Simeon Draper and Supervisor Bell united in a complaint before the Grand Jury, who found an indictment; whereupon all the rest of the individuals who had been honored with the attentions of the *Alligator* set to work to aid in bringing Branch to justice. His case was set down for trial in the sessions on Monday last. When the case was called,

Branch announced himself ready for trial; the District Attorney, however, said he would not be ready till Tuesday. An attempt had been made on Saturday to prejudice the case by one of his bondsmen, being induced to surrender Branch, and on Tuesday, in the middle of the trial, Mr. Southworth, the other bondsman, went into Court and surrendered him. In both cases other parties came forward and took the places of these pretended friends. By applying the sharpest rules of legal practice, his testimony was ruled out and Branch was convicted, and without giving him time to breathe, he was sentenced to pay a fine of \$250 and to be imprisoned in the Penitentiary for one year. The Recorder in his remarks volunteered the gentle hint to the rest of the newspapers, that there were a number of other editors whom he meant to put through a similar course of sprouts. While we do not care to quarrel with the verdict of the jury, and certainly do not wish to be understood as advocating the license of the Press to assail unjustly the character of any individual in the community, we must say to the Recorder and the parties to the trial, that we hardly think they will find any other case in which they will be permitted to put an editor through with quite such railroad speed, though we admit that if justice were as promptly administered in all cases, the Court of Sessions would stand much higher in public estimation. Of the real merits of Branch's case we have no means of judging. That he believed the truth of the charges he made we have not the slightest doubt. If there was any falsehood in the matter, he was the dupe of it and not the perpetrator, and we sincerely regret that the prosecutors saw fit to avail themselves of legal technicalities to shut out what his witnesses had to say. It is quite as unfortunate for them as it is for Branch. While their suppression consigns him to prison it leaves the prosecution open to invidious comments, all of which might have been silenced by dragging the slanderers (if such they are) into the light of day and refuting these calumnies. That, however, is their business, not ours. In the meantime poor Branch has been consigned to the tender mercies of the Ten Governors—one of whom, at least, has publicly announced his determination to "put him through the *roughest course of training* any man ever got on the Island." We were surprised to hear that the Governor in question had made this *heartless* speech. We supposed him to be a *Christian* and a *man*, but we cannot reconcile the idea of striking a fallen and powerless brother as either an evidence of *Christianity or manhood*, and we trust the Governor will yet see the impropriety of attempting to put

his threat into execution. We see by this morning's *Express*, that Branch was on Friday seen in the quarry with his hands all a mass of blisters, working away under a broiling sun. This looks as though the Governors intend to give him the full benefit of his sentence.

The *Herald* takes the occasion of Branch's conviction to read us a lecture on the enormity of scurrility and libel. No other print in the country is so well qualified for the task. Bennett evidently thinks New Yorkers have short memories, not to recollect the obscene and licentious character of the *Herald* in its earlier days. He has used Branch as often as any other paper in New York to abuse people towards whom he had incurred a hostility, but now he is down, Bennett kicks him with the rest. We perceive that George Wilkes has commenced a libel suit against Bennett for what he said of *Porter's Spirit*.

[We have taken the liberty of *italicizing* a portion of the above article—*Ed. Alligator.*]

[*From the Sunday Times.*]

LIBEL CASE CHARACTERISTICS.—The conviction of Stephen H. Branch, before Recorder Barnard, on Wednesday, of a libel on Mayor Tiemann and two other public officers, naturally created a sensation. So did the remarks of the bench. Sentencing Mr. Branch to a year's imprisonment in the penitentiary and a fine of two hundred and fifty dollars, while such a man as Peter Dawson is subjected to incarceration for only sixty days, is not likely, however, to exert a wholesome effect upon the public mind. We have no doubt the recorder meant, by his severity, to make an example of Branch, in order to deter other indiscreet men who are more led by their impulses than their judgment from indulging in similarly reprehensible publications: but we conceive that justice administered with such rigidity, under the peculiar circumstances of the case, might seem to wear the aspect of persecution; and converting Branch into a martyr, neither elevates the character of the court, nor wins the moral sympathy of public opinion. The general mind has really appropriated the idea that because Branch attacked so important a person as Mayor Tiemann, the whole power of the corporation has been consolidated into one grand vindictive effort to crush out the courageous but silly slanderer. Every one naturally murmurs, therefore, if this be so,

who may not be the next sacrifice? Common rumor does not hesitate to insinuate that the character of the proceedings taken against Branch, and the peremptory treatment bestowed upon the counsel for the prisoner, were the result of a preconcerted arrangement of the authorities. This assumption believed, who feels secure of justice should he be unfortunate enough to incur the enmity of a coalition so potential?

Mr. Branch's libels were coarse, scandalous, and boldly reiterated. It was difficult to believe them wholly foundationless, because an investigation was demanded with such persistent audacity. Branch openly avowed his readiness to establish all his statements, however defamatory; and although they criminated citizens whose good name we had always been taught to esteem, they started our incredulity, and set every thinking mind astir with painful distrust. We were glad, therefore, to find a legitimate course adopted, and an appeal to the laws made to decide the truth or falsity of the accusations.

Mr. Branch, as a libeller of the most extravagant kind, merited condign punishment; but, after all, it is very clear that Mr. Branch's strange, wild, energetic, incoherent nature, has been made use of by somebody else to accomplish his own purposes. Branch has been the catspaw of some deeper and more sanely plotting intellect behind the curtain; and we regret that the Recorder considered it necessary to rule out the testimony which might have introduced us to the principals in this offensive operation, instead of their harum-scarum instrument. It would have been, as far as the libelled ones are concerned, much better to have probed the whole affair to the bottom, even if the exact rule of evidence had been made to yield temporarily to the exigency. It would have been better for them to let the public perceive precisely on what ground all this edifice of mendacity had been constructed. It would have exhibited the confidence which belongs to conscious innocence. It would not only have exposed the real wire-workers of this game of wholesale calumny, but, in demonstrating the integrity of the parties assailed, it would have left no unexplained mystery, no dubious point of fact, around which malice might still gather the shadowy wind-breath of current scandal. If, however, they are satisfied, we ought to be. We are not convinced that Randall's Island is a paradise of official morality, and the great public would not credit us were we to hazard an assertion to that effect; but we *are* satisfied that the particular charges made by Mr. Branch are untrue, though imposed upon him as truths, and we hope

that, having had their probity completely substantiated in the premises, the gentlemen so recklessly accused by Mr. Branch are not disposed to be vindictive.

In conclusion, we must be permitted to say that we do not admire the tone of the Recorder's remarks on passing sentence. It is the first time we have had occasion to allude to this gentleman except in terms of merited commendation. We entertain a high opinion of his general impartiality. His promptitude, his disdain for pettifogger's quibbling, his nice sense of justice, and his freedom from those tainted associations which rob the bench in some quarters of dignity and public confidence, have all contributed to place him in the front rank of our criminal magistracy. We do not impugn his integrity, therefore, but the quality of his judgment both in imposing so severe a sentence upon this weak and foolish victim of designing knaves, and in speaking of "other libellers," to all of whom he contemplates meting out a "similar punishment." We know very well that he intended to threaten no respectable press, or to hint at fetters *in terrorem* upon its proper independence—but his language may be easily misinterpreted; and when we consider how liable the most prudent journalist is to daily imposition, the observation that "this verdict settles the fact that no man can make an assertion in a newspaper without being liable to be punished criminally, unless he can substantiate it," seems to us one of gratuitous harshness, and in any body else would be called one of petulance and ill-humor. Branch's excitement, however, had doubtless disturbed the usual current of quiet feeling which characterizes the conduct of the Recorder, and we see the effect. The best of us are open to these influences, and we are not inclined to forget how much the community owes to the general honesty and equity of Recorder Barnard, in our exceptions to what is, perhaps, but a hasty expression or so in the present instance.

Considering that there are at least 10 or 12 suits for libel pending against the *Herald*, for gross and malicious libels upon sundry respectable citizens, it is really refreshing to peruse its comments upon the warning given by Recorder Barnard in the Branch case, to libellers generally. What the *Alligator* is, the *Herald* was; and if the latter has improved in decency in proportion as it has increased in responsibility, necessity, not choice, lies at the bottom of the metamorphosis. We are afraid that the Recorder's hint was purposed, in fact, for the special edification of the *Herald*. And, notwithstanding that journal's sudden disposition to saponize *both* the

gentlemen on the bench of the General Sessions, instead of its customary one, the Recorder may chance to give its responsible conductor a lesson of impartiality he little expects by coercing him, despite his self-importance, to keep company with Mr. Branch, as a reward for some of his virulent assaults on private character.

[*From the N. Y. Sunday Mercury.*]

BRANCH'S SENTENCE.—Quite unexpectedly the trial of Stephen H. Branch, for libel against Mayor Tiemann, Simeon Draper and Isaac Bell, was brought up and dispatched, during the past week, with a velocity which would make the most wholesome impression, were the rest of the District Attorney's calendar put through with equal promptness and exemplary effect. Branch was found guilty, and sentenced to one year's imprisonment on Blackwell's Island, and two hundred and fifty dollars fine. The *Tribune*, in alluding to this sentence of Branch by Recorder Barnard, says:

“Considering that the libel, however groundless essentially, appears to have had a real foundation in statements made to Branch by persons whom he undoubtedly believed, and whom his counsel had ready to produce (but their testimony was not allowed), we must consider this sentence a severe one. We believe it will excite for him a sympathy which it is unwise to provoke. Branch, we believe, has been trying pretty hard to libel *us* in his abusive little sheet; but we have never considered his slanders worth any sort of notice. It may be well to stop his career, but not to make him a martyr. And we say most decidedly, that considering the libel for which he was indicted was really based on information furnished him by persons whom he had reason to believe, we deem his sentence a harsh one, and trust it may be mitigated by pardon.”

By the press generally, the matter is regarded pretty much in the same temper, excepting the anomalous instance of the *Herald*! That immaculate sheet takes occasion to give utterance to any extent of wrath and indignation against Branch and his *Alligator*, and characteristically against such of its cotemporaries, present and past, as it would desire to denounce and stigmatise, with an odor which has by no means been washed from its own bedraggled garments. Indeed, as the direct object of the *Herald* would appear to be a malicious fling at the *Spirit of the Times* in view of another

case on the Recorder's docket—that of Judge Russell's indictment—so the *Herald* lays itself liable to another indictment, which has been duly entered against Bennett for no less than twenty-five thousand dollars.

The *Herald's* fulminations, and the political pressure brought to bear upon Branch by his prosecutors must inevitably have the effect of exciting a warm public sympathy for their object. Such, indeed, is the manner in which the infliction of the full penalty of the statute is regarded in this case, that the prosecutors themselves will be forced to step in as petitioners for a pardon, or incur no little odium in the business. Besides, what is very sensibly remarked by the *Tribune*, as to the foundation of Branch's charges, it might be added that the public have no means of judging whether those charges are well founded or not. By a course of proceedings altogether extraordinary on the part of the prosecution, the apparent real evidence in the case was completely excluded, and Branch convicted solely upon the oaths of his prosecutors, without an actual investigation of the presumed issue on which the libel originated. The public are largely exercised on the matter, and inquiry is particularly active as to who the "Matron" really is? Why she was not put upon the stand, and what she could have to say for herself? How would her previous character have justified her taking the stand as a witness, or of holding the position she has occupied under the chief magistrate? These points are matters of curious comment among the people, necessarily provoked by the seemingly harsh and rough-shod procedure in the case. It is to be regretted the matter was not fully cleared up by the production of the entire evidence.

HOW BRANCH CONFRONTS HIS FATE.—The renowned tamer of alligators—I may as well add, *en passant*—was duly surrendered to Warden Finch on Thursday, having been escorted hither to his prison by a little host of friends, whose temper indicated no disposition to desert him. Sympathy is strongly in his favor, on the ground, of course, that, whatever may be thought of his offence, his treatment at the hands of the officials and lawyers, has been such as only a weak and comparatively friendless man like him would meet. You will soon see his prosecutors forced to sue for his deliverance, just as eagerly as they have pressed for his imprisonment.

Besides the sensation created here, it has been noticeable that a general scattering—"on leave"—of certain subordinates, has taken place during the late "inquest." It is doubtful if Stephen will, even here, have a chance to

confront the mysterious “matron.” The fright of the trial being apparently over, the fugitives from the Alms-House will doubtless return forthwith. Under the discipline of these precincts they will find their best protection, as well from the impertinence of cross-examining lawyers, as from the no less stringent inquiries of a keen public curiosity, mainly aroused by the suppression of the inside testimony which could be found here. The nature and source of this I have already pointed out. Should the motion in arrest of judgment reopen the trial, it will doubtless be for the admission of the main evidence in the case, so mysteriously and adroitly evaded by the prosecution. Then only can the provoking rumors, now so general, be set at rest, or satisfactorily determined.

The fate of Branch here, it appears, will be in no degree lenient, as there is more than one petty tyrant under the vice royalty who seems desirous of venting his spleen upon the unfortunate man. He has taken his place, it appears, already, by direction of the keepers, beside the common fellows in the quarries. The directions of one of the Governors is quoted to the effect that he would be “put through the roughest course of training any man ever got on the Island.” I have purposely withheld a variety of matters in connection with these precincts this week, until the interests with Stephen, with regard to the Ten Governors, is more definitively settled.

Stephen H. Branch’s Alligator.

New York, Saturday, August 21, 1858.

If there be one thing more than another on which we had fully made up our minds it is this: that our country is pre-eminently free—yea, the freest in the whole family of nations. But the history of the past week has taught us how very easily it is to be mistaken.

The trial of Stephen H. Branch in our Court of Sessions, a few days ago, teaches us a lesson which we ought not soon to forget. From the time that our great nabob, Mayor Tiemann, associated with the Peter Cooper *guild*,

first made their complaint, or “Trinity” of complaints, down to the passing of the sentence in the Court of Sessions, the trial was one of the most vindictive and one-sided affair, on the part of the prosecution, that we recollect during our sojourn on this “miserable globe.”

In the first place, it was proved on the trial that one of the complainants, or more properly *persecutors*, had never been before the Grand Jury. In the second place, it would appear that indictments by the dozen must have been preferred against the accused; for if we recollect aright, he was arrested every day for nearly a fortnight, previous to his trial. And again we have been told—how far it is true we care not to inquire—that one man who professed great friendship for him, and became his bail on the last arrest, two days before his trial, on the following day withdrew his bail, and delivered the unfortunate man up to his adversaries; and in consequence of this latter act realised a contract from the city authorities. “Save us from our friends.”

If all this be true, it is one of the most arrant pieces of villany ever recorded of Christian men.

When we come into court we, unfortunately, if possible, find things worse. The ruling of the Judge was altogether too strict—too severe—in fact too arbitrary. The Judge, it appears to us, made it a point of his business to shield, as much as possible, the complainants on the one hand, by interfering in behalf of the Mayor, when he was being cross-questioned by defendant’s Counsel; whilst on the other hand he ruled out the principal evidence in support of the defendant, and of course deprived the accused of the slightest shadow of a chance to establish his innocence.

Then comes the Recorder’s charge to the Jury. And that we think is in keeping; or, perhaps, we ought to say an improvement on the spirit of the whole proceedings. Let any one sit down and read that charge calmly and dispassionately, and we venture to assert that for severity the reader cannot find a case to surpass it, nor perhaps even to equal it in the history of modern English jurisprudence.

Then, if we consider the hurried manner in which the prosecution got up this trial, and their mode of conducting it, as described above, we must consider the proceedings unwarranted by the premises; and forms a great contrast to the tardy manner in which our Courts mete out their infinitesimal doses of punishment to Thieves, Burglars, Murderers and Desperadoes.

There is still another charge, which in our opinion is the gravest of all. After the rendition of the verdict the counsel for the defence moved a stay of proceedings; now mark the reply of his honor. *That he had yesterday considered the possibility of such an application, and had* THEN MADE UP HIS MIND *that it could not be granted.* So from this it would appear, that the whole affair was settled before the parties came into court; and so far as the trial goes, it was simply a collateral incident of the proceedings, and not at all an operation for attaining the great end of justice.

Now, we do not say a word as to the guilt or innocence of Mr. Branch. He may be guilty—he may be innocent; we are just as far, if not farther, from that point than we were a month ago; and this is the ground of our complaint.

If such proceedings be allowed permanently to obtain in our courts of justice, then we say that “trial by jury becomes a mockery, a delusion, and a snare.”



AN IMMORTAL PETITION.

*The Wise Peter Cooper, and his most extraordinary proposal of a Tank on the summit of the City
Hall, for the extinguishment of disastrous conflagrations.*

[Document No. 13.]

BOARD OF ALDERMEN, }
February 6, 1854. }

The following petition of Peter Cooper, in relation to the prevention and extinguishing of fire, and to give greater efficiency to the Police Department, was received and laid on the table and ordered to be printed.

D. T. VALENTINE,
Clerk.

To the Hon. the Mayor and Common Council of the city of New York.

[CONCLUDED.]

It must be apparent to every reflecting mind that the great extent of our city already, imposes a burden on the present firemen so great, that we have no right to expect that it will be borne a great while longer by a voluntary Fire Department.

It is evident that something should be done at once to furnish the Fire Department, the relief that they have a right to expect from the excessive labor that is unavoidable in drawing their engines to and from, and the hazzard and fatigue of working them at the numerous fires that take place.

In the opinion of your subscriber, the plan of placing light carts with hose at convenient distances in every street, to be at the service of a body of police, all interested to use this hose for the extinguishment of fires with the greatest possible energy and effect, is the best that can be adopted. By this arrangement it is safe to calculate that the present Fire Department will be relieved from something like three quarters of the duties they are now called upon to perform. As an equivalent for this relief, I propose that the Fire Department shall become the guard of honor for our city, to be called out as firemen or soldiers whenever their services are required by the proper authorities of our city. This arrangement proposes to continue the present Fire Department with every privilege they now enjoy, and relieve them from more than half the labors they are now required to perform.

It is believed by your subscriber, that the plan proposed will make the Fire Department and also the present active Police Department, the most useful and honorable bodies of men in our city. The hearty co-operation of the members of the Fire Department, and also the members of the Police to secure for our city the blessings which must naturally result from this arrangement, will entitle them not only to the pecuniary advantages that must result to themselves and their families, but to the lasting gratitude and respect of every worthy inhabitant of our city.

It is worthy of remark that the insurance companies of this city have now in their employ eighty (80) men, at an expense of thirty (30) thousand dollars a year, to watch against fires. I am informed that they intend greatly to increase this force; in addition, your subscriber, with a great number of merchants and private families, have for years constantly employed private watchmen, to guard our stores and watch our dwellings from robbery and fires. All that these cost, and more, would be gladly contributed to a body of police who would, by a faithful performance of duty, secure the necessary relief for our Fire department, by lessening annually the number of fires, and also by reducing the amount of property stolen below the average agreed upon.

I have taken the liberty to invite the attention of your honorable body to an ARRANGEMENT AND PRINCIPLE by which a large majority of all the officers in the employ of the city will become pecuniarily and otherwise interested in a faithful performance of their duty. Such performance will not only secure to them the large fund provided by the Corporation, and in addition

the fund to be recovered from the insurance companies, as a reward for reducing the loss by fire below the average agreed upon, but they would, in addition, find the faithful performance of duty the surest relief from excessive labor, by diminishing the number of fires and the amount of crime that now form so great and so unpleasant a part of their present labor.

The principal idea in the foregoing communication, was presented by your subscriber to a previous Common Council, some twelve years since, under a full sense of the great advantages that would result by saving millions of property annually from destruction, and what is of more value, it would save the health and morals of thousands of the best and most enthusiastic young men of our city from being broken down and destroyed by their loss of time and the excessive labor occasioned by the numerous fires that take place, and which would mainly be prevented by adopting the arrangement proposed.

All of which is most respectfully submitted.

Yours, with great respect,

PETER COOPER.

WE have no doubt that by this time it is pretty generally understood, that we have an engagement to fulfil, with the co-operation which, for the present, requires our almost constant attentions. We offer this as an excuse, partly for some very excellent extracts from the press, which our readers will accept, together with our best wishes. We also indulge in the hope that in our Geological researches among the islands of the sea, that we shall make some valuable discoveries which will be of use to the inhabitants of the earth, and to the dwellers in Gotham in particular.

A CAPITAL HOAX.—Some men plagiarise the thoughts of others, without being at all aware of the pungency of the fact as regards themselves. The

Herald, in alluding to a few of the “minor press,” gotten up and “spiced” precisely as the *Herald* itself originally was, when it first attracted public attention, remarked: “These fellows must be taught that they cannot use the liberty of the press so far as to make it the vehicle of their dirty thoughts and dirtier expressions, and that an honorable profession is not to be degraded because they hang upon its skirts, like foul birds hovering over their prey.” The beauty of it is, this extract is, word for word, the language employed by the *Courier and Enquirer*, in March, 1842, in relation to the *Herald* itself!—*Mercury*.



FRANK LESLIE AGAIN ARRESTED.

RICH SCENE AT THE TOMBS!

[From the Sunday Times.]

Frank Leslie was again arrested yesterday morning, on complaint of Aldermen Reed and Tuomy. The officer told Mr. Leslie that his orders were imperative to take him at once before Justice Osborne at the Tombs, without allowing him to send for counsel or seek for bail. On arriving at the Tombs, they were met by Aldermen Tuomy and Reed, accompanied by Mr. John Graham, their counsel. Justice Osborne asked Mr. Leslie if he demanded an examination. Mr. Leslie stated that he had not been allowed time to send for his counsel, and did not know what course to pursue. Justice Osborne said he could have time to send for counsel and for bail.

Mr. Graham then produced the complaints. That of Alderman Reed set forth that Mr. Leslie had published a picture representing him in the garb of a butcher, with a party of Irishmen driving a miserable and diseased-looking cow, without tail or horns, up to his stall. The leader of the party, Mr. Mike O'Flannagan, is represented as saying: "I read you tould the aldermen t'other day that swill-fed beef was worth half a cent a pound more than any other kind of meat. Here's a beauty, yer honor; doesn't he look fat and luscious? Arrah! don't yer eyes wather to look at it?—Here's the baste; we've brought it on purpose fer yez. Hand us over the dimes!"

Alderman Reed is represented as saying:—"I don't deal in that kind of beef. I stated that as an alderman, not as a butcher."

Ald. Tuomy makes two complaints against Mr. Leslie. In the first one Ald. Tuomy is represented as a ranting, roaring Irishman on board the

Ericsson, with a bottle of whisky in one hand and a shillelah in the other, saying—"If I catch the "Tribune" reporter I'll throw him overboard, G—d d—n him." The second one embraces an alleged libellous article, and a caricature of Aldermen Tuomy and Reed, in which their nasal peculiarities are most outrageously magnified. Mr. Graham stated to the court that he desired to compel Leslie to give \$2,500 bail in each case; in the two former instances, to keep the peace for twelve months, and abstain from publishing any more caricatures; and in the third case to answer criminally to the Sessions. Mr. Graham proceeded to say, that they intended to show these English scoundrels that they could not libel and caricature respectable citizens with impunity.

Mr. Leslie said—"You had better keep cool, Mr. Graham."

Mr. Graham, who was evidently very much excited, jumped up and said—"Don't speak to me, you scoundrel, or I shall not be answerable for the consequences. I ask your Honor to note that this is an attempt to intimidate respectable counsel. These fellows intend to caricature the whole court. I'll neck the first man I see take out a pencil. [At this juncture our reporter took out his pencil and began to take notes.] The first acquaintance I ever had with him showed him (pointing to Leslie) to be a d—d scoundrel. If they will meet me on any flat in New York (pointing to Leslie and his friend Watson), I'll take the heads off both of them. I'll show them by the swelling of their chops there's no Miss Nancyism about me" [shaking his fist in their faces].

Mr. LESLIE—"We are gentlemen—we are no pugilists, Mr. Graham."

Mr. Graham.—"You are a G—d d—d English thief. I can lick the pair of you."

Judge Osborne.—"Mr. Graham, you must stop this, as I can't allow it."

Mr. Graham.—"Within the past seventy-two hours he has sent a shaft to the heart of the only remaining parent I have on earth, and the other night I went down alone past his establishment, intending if I met him on the curb to whip him like a dog."

Mr. Leslie asked if the court intended to allow such proceedings to continue. They were gentlemen, and not blackguards.

Ald. Reed.—"If they are gentlemen, one has sailed under an alias for the past five years."

Mr. Leslie.—“That is not true.”

Justice Osborne.—“Gentlemen, you must stop this.”

Mr. Graham.—“The only question is, are two gentlemen to be constantly libelled by these English transports? They contaminate the air. If I stay in the room with them much longer, I shall suffocate. [Pointing to them.]. See what mean-looking English thieves they are!”

At this juncture, a gentleman, who we believe is Mr. Leslie’s printer, got up and told Mr. Graham that he must not speak to him in that way. This style of conversation continued some time longer, but did not lead to any breach of the peace, although it was evident that Mr. Graham needed but a very small provocation to make him take off his coat and “go in.”

Mr. Leslie gave the required bail to keep the peace, justifying himself, in \$5,000, and two sureties of \$2,500 each. Messrs. Sam S. Sherwood and Alexander Douglass became his bail.

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EDWIN F. COREY, JR.

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FALL ELECTION.

STATE OF NEW YORK,	}
OFFICE OF THE SECRETARY OF STATE,	}

ALBANY, August 2, 1858. }

To the Sheriff of the County of New York:

SIR—NOTICE IS HEREBY GIVEN, THAT AT THE GENERAL, Election to be held in this State on the Tuesday succeeding the first Monday in November next, the following officers are to be elected, to wit:

A GOVERNOR, in the place of John A. King;

A LIEUTENANT GOVERNOR, in the place of Henry R. Selden;

A CANAL COMMISSIONER, in the place of Samuel B. Ruggles, appointed in place of Samuel S. Whallon, deceased;

AN INSPECTOR OF STATE PRISONS, in the place of William A. Russell;

All whose terms of office will expire on the last day of December next.

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Third Congressional District, composed of the First, Second, Third, Fifth and Eighth Wards in the city of New York.

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Fourth Congressional District, composed of the Fourth, Sixth, Tenth and Fourteenth Wards in the city of New York;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Fifth Congressional District, composed of the Seventh and Thirteenth Wards of the city of New York, and the Thirteenth, Fourteenth, Fifteenth and Sixteenth Wards of Brooklyn;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Sixth Congressional District, composed of the Eleventh, Fifteenth and Seventeenth Wards in the City of New York;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Seventh Congressional District, composed of the Ninth, Sixteenth, and Twentieth Wards in the City of New York;

And also, a REPRESENTATIVE in the Thirty-sixth Congress of the United States for the Eighth Congressional District, composed of the Twelfth, Eighteenth, Nineteenth, Twenty-first, and Twenty-second Wards in the City of New York.

COUNTY OFFICERS ALSO TO BE ELECTED FOR SAID COUNTY.

SEVENTEEN MEMBERS OF ASSEMBLY;

A SHERIFF, in the place of James C. Willett;

A COUNTY CLERK, in the place of Richard B. Connolly;

FOUR CORONERS, in the place of Frederick W. Perry, Edward Connery, Robert Gamble and Samuel C. Hills;

All whose terms of office will expire on the last day of December next.

The attention of Inspectors of Election and County Canvassers is directed to Chapter 320 of Laws of 1858, a copy of which is printed, for instructions in regard to their duties under said law, "submitting the question of calling a Convention to revise the Constitution and amend the same to the people of the State."

CHAP. 320.

AN ACT to submit the question of calling a Convention to revise the Constitution and amend the same, to the People of the State:

Passed April 17, 1858—three-fifths being present.

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

SECTION 1. The Inspectors of Election in each town, ward, and election district in this State, at the annual election to be held in November next, shall provide a proper box to receive the ballots of the citizens of this State entitled to vote for members of the Legislature at such election. On such ballot shall be written or printed, or partly written and printed, by those voters who are in favor of a Convention, the words: "Shall there be a Convention to Revise the Constitution and amend the same? Yes." And by those voters who are opposed thereto, the words: "Shall there be a Convention to Revise the Constitution and amend the same? No." And all citizens entitled to vote as aforesaid shall be allowed to vote by ballot as aforesaid, in the election district in which he resides, and not elsewhere.

§2. So much of the articles one, two and three, of title four, of chapter one hundred and thirty, of an act entitled "An act respecting elections other than for militia and town officer," passed April fifth, eighteen hundred and forty-two, and the acts amending the same, as regulates the manner of conducting elections and challenges, oaths to be administered, and inquiries to be made, of persons offering to vote, shall be deemed applicable to the votes to be given or offered under the act: and the manner of voting and challenges, and the penalties for false swearing, prescribed by law, are hereby declared in full force and effect in voting or offering to vote under this act.

§3. The said votes given for and against a convention, in pursuance of this act, shall be canvassed by the Inspectors of the several election districts or polls of the said election in the manner prescribed by law, and as provided in article four, of title four, of chapter one hundred and thirty of the said act, passed April fifth, eighteen hundred and forty-two, and the acts amending the same, as far as the same are applicable; and such canvass shall be completed by ascertaining the whole number of votes given in each election district or poll for a convention, and the whole number of votes given against such convention, in the form aforesaid; and the result being found, the inspectors shall make a statement in words, at full length, of the number of ballots received in relation to such convention, and shall also state in words, at full length, the whole number of ballots having thereon the words, "Shall there be a Convention to revise the Constitution and amend the same? No." Such statements as aforesaid shall contain a caption, stating the day on which, and the number of the district, the town or ward, and the county at which the election was held, and at the end thereof a certificate that such statement is correct in all respects, which certificate shall be subscribed by all the inspectors, and a true copy of such statement shall be immediately filed by them in the office of the clerk of the town or city.

§4. The original statements, duly certified as aforesaid, shall be delivered by the inspectors, or one of them to be deputed for that purpose, to the supervisor, or, in case there be no supervisor, or he shall be disabled from attending the board of canvassers, then to one of the assessors of the town or ward, within twenty-four hours after the same shall have been subscribed by such inspectors, to be disposed of as other statements at such election, are now required by law.

§5. So much of articles first, second, third, and fourth, of title fifth, of chapter one hundred and thirty, of the act entitled, "An act respecting elections other than for militia and town officers," and the acts amending the same, as regulates the duties of County Canvassers and their proceedings, and the duty of County Clerks, and the Secretary of State, and the Board of State Canvassers, shall be applied to the canvassing and ascertaining the will of the people of this State in relation to the proposed convention; and if it shall appear that a majority of the votes or ballots given in and returned as aforesaid are against a convention, then the said canvassers are required to certify and declare that fact by a certificate, subscribed by them; and filed with the Secretary of State: but if it shall appear by the said canvass that a majority of the ballots or votes given as aforesaid are for a convention, then they shall by like certificates, to be filed as aforesaid, declare that fact; and the said Secretary shall communicate a copy of such certificate to both branches of the Legislature, at the opening of the next session thereof.

Yours, respectfully,

GIDEON J. TUCKER, Secretary of State.

SHERIFF'S OFFICE, }
NEW YORK, August 4, 1858. }

The above is published pursuant to the notice of the Secretary of State, and the requirements of the Statute in such case made and provided.

JAMES C. WILLET,

Sheriff of the City and County of New York.

☞ All the public newspapers in the county will publish the above once in each week until the election, and then hand in their bills for advertising the same, so that they may be laid before the Board of Supervisors, and passed for payment. See Revised Stat, vol. 1, chap. 6, title 3, article 2d, part 1st, page 140.

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